

SENATE BILL 2038

By Kyle

AN ACT to amend Tennessee Code Annotated, Title 3;
Title 4; Title 8 and Title 12, relative to public
property.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as the "No Corporate Land Giveaways Act."

SECTION 2. Tennessee Code Annotated, Title 12, Chapter 2, Part 1, is amended by adding the following as a new section:

(a) The commissioner of general services and the chair of the state capitol commission, as applicable, shall provide written notice in accordance with subsection (b) prior to the transfer of ownership, an exclusive leasehold interest, or exclusive control of real property owned by this state to a private entity, for a private project, or for private development without the state receiving consideration for such transfer.

(b) The commissioner and chair shall provide such written notice at least thirty (30) days prior to the transaction to the chairs of the joint government operations committee of the senate and house of representatives and each member of the general assembly who represents all or a portion of a county in which the real property subject to the transaction is located, in whole or in part.

(c) The commissioner of general services and the chair of the state capitol commission, as applicable, shall not transfer such ownership or interest in real property unless the joint government operations committee of the senate and house of representatives approves such transfer no later than thirty (30) days after receiving

notice pursuant to subsection (b). If the joint government operations committee takes no action within such period, the transfer is deemed disapproved.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.